

Acts to a fine not exceeding five pounds: Provided that no person shall be subject to any such penalty for refusing to state his religious profession.

(3) If any person employed in taking the census communicates without lawful authority any information acquired in the course of his employment, he shall be guilty of a misdemeanour and shall on conviction be liable to imprisonment with or without hard labour for a term not exceeding two years, or to a fine or to both such imprisonment and fine.

8. A certificate from the General Register Office, purporting to be signed by the Registrar-General of Births, Deaths and Marriages in Ireland, shall be admitted in any court of law as evidence of the population, at the census taken under this Act, of any county, borough, town, district or other area to which it refers, and the said Registrar-General shall be bound, if possible, to deliver such certificate to any person on payment of a fee of one shilling. Certificate of population.

9. This Act may be cited as the Census (Ireland) Act, 1920. Short title.

CHAPTER 43.

An Act to amend the Law relating to Firearms and other Weapons and Ammunition, and to amend the Unlawful Drilling Act, 1819. [16th August 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) A person shall not purchase, have in his possession, use, or carry any firearm or ammunition unless he holds a certificate (in this Act called a firearm certificate) granted under this section, and in force at the time. Restriction on purchase, possession, and use of firearms.

(2) A firearm certificate shall be granted by the chief officer of police of the district in which the applicant for the certificate resides, if he is satisfied that the applicant is a person who has a good reason for requiring such a certificate and can be permitted to have in his possession, use, and carry a firearm or ammunition without danger to the public safety or to the peace, and on payment of the prescribed fee :

Provided that—

(a) a firearm certificate shall not be granted to a person whom the chief officer of police has reason to believe to be a person who by this Act is prohibited from possessing, using, or carrying a firearm, or to be a person of intemperate habits or unsound mind, or to be for any reason unfitted to be entrusted with firearms; and

(b) a firearm certificate in respect of firearms or ammunition to be used solely for target practice or drill by the members of a rifle club or cadet corps approved for the purpose by a Secretary of State may be granted to any responsible officer of the club or corps without payment of any fee.

(3) A firearm certificate shall be in the prescribed form and shall specify the nature and number of the firearms to which it relates, and, as respects ammunition, the quantities authorised to be purchased and to be held at any one time thereunder, and the certificate may on the application of the holder thereof be varied from time to time by the chief officer of police of the district in which the holder for the time resides.

(4) Any person aggrieved by a refusal of a chief officer of police to grant him a firearm certificate, or to vary such a certificate, may appeal in accordance with rules made by the Lord Chancellor to a court of summary jurisdiction acting for the petty sessional division in which the appellant resides.

(5) A firearm certificate shall, unless previously revoked or cancelled, continue in force for three years, but shall be renewable for a further period of three years by the chief officer of police of the district in which the holder of the certificate resides, and so from time to time; and the provisions of this Act with respect to the grant of a certificate and to appeals from a refusal to grant a certificate shall apply to the renewal of a certificate.

(6) A firearm certificate may be revoked by the chief officer of police of the district in which the holder resides if he is satisfied that the holder thereof is a person who is prohibited by this Act from possessing, using, or carrying a firearm, or is a person of intemperate habits or unsound mind, or is otherwise unfitted to be entrusted with firearms, subject, however, to the like right of appeal as in the case of a refusal to grant a firearm certificate.

(7) The fee to be paid on the grant or renewal of a firearm certificate shall be such as is specified in the First Schedule to this Act.

(8) If any person purchases, has in his possession, uses, or carries a firearm or ammunition without holding a firearm-certificate or otherwise than as authorised by such a certificate or, in the case of ammunition, in quantities in excess of those so authorised, or fails to comply with any condition subject to which the certificate is granted, he shall be liable in respect of each offence on summary conviction to a fine not exceeding fifty pounds, or to imprisonment, with or without hard labour, for a term not exceeding three months, or to both such imprisonment and fine.

Provided that no offence under this section shall be deemed to be committed—

(a) in the case of any person in the naval, military, or air service of His Majesty, or in a police force, by having in his possession a firearm or ammunition in his

- capacity as such, or by using or carrying a firearm or ammunition in the performance of his duty as such; or
- (b) in the case of any person carrying on the business of gunsmith or dealer in firearms or of testing or proving firearms or ammunition or the servant of such a person, by purchasing or having in his possession, using, or carrying a firearm or ammunition in the ordinary course of such business as aforesaid; or
 - (c) in the case of any person carrying on the business of common carrier or warehouseman, by having in his possession or carrying a firearm or ammunition in the ordinary course of that business; or
 - (d) in the case of any person, by having in his possession a firearm or ammunition on board ship as part of the equipment of the ship, so long as the firearm or ammunition is not brought on shore at any place in the United Kingdom or by bringing a firearm ashore for repair provided that he has obtained from an officer of police a permit in the prescribed form for that purpose; or
 - (e) in the case of any member of a rifle club or miniature rifle club or cadet corps approved by a Secretary of State, by having in his possession, using, or carrying a firearm or ammunition when engaged as such member in, or in connection with, drill or target practice; or
 - (f) in the case of an officer of the Post Office by having in his possession, using, or carrying a firearm or ammunition when acting in the course of his duties; or
 - (g) in the case of a person carrying a firearm or ammunition belonging to a person holding a certificate under this Act, by having in his possession such firearm or ammunition under instructions from and for the use of such certificated person for sporting purposes only; or
 - (h) in the case of any person carrying on the business of butcher, slaughterman, knacker, or other person engaged in the business of the humane slaughter of animals for food or other purposes, by purchasing or having in his possession or using any humane killer for the purpose of such business; or
 - (i) in the case of any person conducting or carrying on a miniature rifle range (whether for a rifle club or otherwise) or shooting gallery at which no firearms are used other than miniature rifles not exceeding .23 calibre, by purchasing, having in his possession, using, or carrying such miniature rifles or ammunition suitable therefor; or, in the case of any person, by using at such miniature rifle range or shooting gallery any such rifle or ammunition; or

(j) in the case of a person who has been refused the grant of a firearm certificate by a chief officer of police or whose firearm certificate has been revoked by having in his possession a firearm or ammunition pending disposal thereof by him, provided that he has obtained from the chief officer of police a permit in the prescribed form for that purpose.

(9) Nothing in this section shall relieve any person using or carrying a firearm from the obligation to take out a gun licence.

Restrictions
on manu-
facture and
sale of
firearms.

2.—(1) A person shall not manufacture, sell, repair, test or prove, or expose for sale, or have in his possession for sale, repair, test or proof, firearms or ammunition by way of trade or business unless he is registered as a firearms dealer in accordance with this Act.

(2) A pawnbroker shall not take in pawn a firearm or ammunition from any person :

Provided that, where any firearm or ammunition has been taken in pawn before the commencement of this Act, nothing in this Act shall prohibit the redemption thereof by a person entitled to redeem the same if he holds a firearm certificate, or is a registered dealer in firearms, and a sale of any such firearm or ammunition to a person holding such a certificate or to such a dealer may be effected by the pawnbroker, notwithstanding anything in the Pawnbrokers Act, 1872, requiring the sale to be by public auction.

35 & 36 Vict.
c. 93.

(3) A person shall not sell to any person, other than a registered firearms dealer, any firearm or ammunition, unless the purchaser produces a firearm certificate authorising him to purchase the firearm or ammunition or proves that he is by virtue of this Act entitled to purchase the firearm or ammunition without having such a certificate :

Provided that this subsection shall not apply to the sale of firearms and ammunition to purchasers abroad.

(4) A person shall not undertake the repair, test or proof of a firearm or ammunition for any person in the United Kingdom other than a registered firearms dealer as such unless that person produces or causes to be produced a firearm certificate authorising him to have possession of the firearm or ammunition or a permit to bring the firearm ashore for repair.

(5) Every person who sells a firearm or ammunition to a person in the United Kingdom other than a registered firearms dealer shall comply with any instructions addressed to the seller contained in the firearm certificate produced, and, in the case of the sale of a firearm, shall, within forty-eight hours from the sale, send by registered post notice of the sale to the chief officer of police by whom the certificate was issued.

(6) Every person who manufactures or sells firearms or ammunition by way of trade or business shall provide and keep a register of transactions, and shall enter or cause to be entered therein the particulars set forth in the Second Schedule to this

Act, and every such entry shall be made within twenty-four hours after the transaction to which it relates took place, and in the case of a sale every such person as aforesaid shall at the time of the transaction require the purchaser, if not known to him, to furnish particulars sufficient for identification, and shall immediately enter the said particulars in the register.

Every such person as aforesaid shall on demand allow any officer of police, duly authorised in writing in that behalf by the chief officer of police, to enter and inspect all stock in hand, and shall, on request—

- (a) by any officer of police duly authorised in writing in that behalf by the chief officer of police; or
- (b) by an officer of customs and excise; or
- (c) in England, by any officer of the county council duly authorised in writing in that behalf,

produce for inspection the register so required to be kept as aforesaid :

Provided that, in each case where a written authority is required by this subsection, such authority shall be produced on demand.

(7) If any person acts in contravention of, or fails to comply with, any of the provisions of this section, or knowingly makes any false entry in the book required to be kept under this section, or, with a view to purchasing a firearm or ammunition, produces a false firearm certificate, or personates a person to whom a firearm certificate has been issued, he shall be liable on summary conviction in respect of each offence to imprisonment with or without hard labour for a term not exceeding three months, or to a fine not exceeding twenty pounds, or to both such imprisonment and fine.

(8) This section shall be in addition to and not in derogation of any provisions of this or any other Act which prohibit or restrict the sale of firearms and ammunition.

3.—(1) A person under the age of fourteen years shall not purchase, have in his possession, use, or carry a firearm or ammunition, and a person shall not sell a firearm or ammunition to any person whom he knows, or has reasonable ground for believing, to be under the age of fourteen years.

Restriction
on purchase,
possession,
and use of
firearms by
persons under
fourteen.

(2) If any person acts in contravention of this section, he shall be liable in respect of each offence on summary conviction to a fine not exceeding twenty pounds or to imprisonment with or without hard labour for a term not exceeding three months, or to both such imprisonment and fine, but no offence shall be deemed to be committed by any person under this provision by having in his possession, using, or carrying a firearm or ammunition in circumstances in which an offence would not be deemed to be committed by him by having in his possession, using, or carrying a firearm or ammunition without a firearm certificate.

Prohibition
of sale of
firearms to
drunk or
insane per-
sons.

4.—(1) A person shall not sell a firearm or ammunition to, or repair, prove, or test a firearm or ammunition for, any person whom he knows, or has reasonable ground for believing, to be drunk or of unsound mind.

(2) If any person acts in contravention of this section, he shall be liable in respect of each offence, on summary conviction, to a fine not exceeding twenty pounds, or to imprisonment with or without hard labour for a term not exceeding three months.

Prohibition
on persons
convicted of
crime carrying
or purchasing
firearms.

8 Edw. 7.c. 59.

5.—(1) A person who has been sentenced to penal servitude or to imprisonment for a term of three months or upwards for any crime shall not, at any time during a period of five years from the date of his release, and a person who is the holder of a licence under the Penal Servitude Acts, 1853 to 1891, or the Prevention of Crime Act, 1908, or is subject to the supervision of the police, or is subject to a recognizance to keep the peace or to be of good behaviour, a condition of which is that the offender shall not possess, use, or carry a firearm, shall not, at any time during which he holds the licence or is so subject, have in his possession, use, or carry a firearm or ammunition; and no person shall sell a firearm or ammunition to, or repair, test, or prove a firearm or ammunition for any person whom he knows, or has reasonable ground for believing, to be a person prohibited by this section from having in his possession, using, or carrying a firearm or ammunition.

(2) If any person acts in contravention of this section, he shall be liable in respect of each offence, on summary conviction, to a fine not exceeding twenty pounds, or to imprisonment with or without hard labour for a term not exceeding three months.

Prohibition of
manufacture,
&c. of
weapons
discharging
noxious
liquids, &c.

6.—(1) It shall not be lawful for any person without the authority of the Admiralty or the Army Council or the Air Council to manufacture, sell, purchase, carry, or have in his possession any weapon, of whatever description, designed for the discharge of any noxious liquid, gas, or other thing, or any ammunition containing or designed or adapted to contain any such noxious thing, and such a weapon is in this Act referred to as a prohibited weapon.

(2) If any person contravenes the provisions of this section, he shall be guilty of a misdemeanour, and be liable on conviction on indictment to imprisonment with or without hard labour for a term not exceeding two years, or on summary conviction to imprisonment with or without hard labour for a term not exceeding three months, or to a fine not exceeding twenty pounds, or to both such imprisonment and fine.

Penalty on
possession of
firearms with
intent to
injure.

7. Any person who has in his possession or under his control any firearm or ammunition with intent by means thereof to endanger life or cause serious injury to property, or to enable any other person by means thereof to endanger life or cause serious injury to property, shall whether any injury to person or property has been caused or not, be deemed to have been guilty

of an offence under section three of the Explosive Substances Act, 1883, and the provisions of that Act shall apply accordingly. ^{46 & 47 Vict. c. 3.}

8.—(1) The chief officer of police of every police district shall keep a register for the purposes of this Act, in the form prescribed by the Secretary of State, of persons manufacturing, selling, repairing, testing or proving firearms or ammunition by way of trade or business (in this Act referred to as firearms dealers), and shall register therein any person who, having a place of business in his district, applies to be registered as a firearms dealer and furnishes him with such particulars as may for the time being be prescribed, and pays a fee of one pound, unless that person is prohibited under this Act from being so registered:

Registration of persons manufacturing or selling firearms.

Provided that, if the chief officer of police is satisfied that any applicant cannot be permitted to carry on business as a dealer in firearms without danger to the public safety or to the peace, he may refuse to register that person.

(2) The chief officer of police shall furnish, or cause to be furnished, to any person who is registered under this section a certificate of registration.

(3) If any person desires to have his name removed from the register, or if the chief officer of police, after giving reasonable notice to any person whose name is on the register, is satisfied that that person is no longer carrying on business as a firearm dealer, or has ceased to have a place of business in the police district, or cannot be permitted to continue to carry on business as a firearms dealer without danger to the public safety or the peace, he shall cause the name of that person to be removed from the register.

(4) Any person aggrieved by a refusal of a chief officer of police to register him as a firearms dealer, or by the removal of his name from the register by a chief officer of police, may appeal, in accordance with rules made by the Lord Chancellor, to a court of summary jurisdiction acting for the petty sessional division in which the place of business in question is situated.

(5) Where a registered firearms dealer is convicted of an offence under this Act, or of an offence against the enactments relating to Customs in respect of the import or export of firearms or ammunition, the court may order—

- (a) that the name of the registered firearms dealer be removed from the register; and
- (b) that neither the dealer nor any person who acquires the business of that dealer, nor any person who took part in the management of the business, and was knowingly a party to the offence, shall be registered as a firearms dealer; and
- (c) that any person who, after the date of the order, knowingly employs in the management of his business the dealer convicted of the offence, or any

person who was knowingly a party to the offence, shall not be registered as a firearms dealer or, if so registered, shall be liable to be removed from the register; and

- (d) that any stock in hand of the business shall be disposed of by sale or otherwise in accordance with such directions as may be contained in the order :

Provided that, where an order has been made under this section, any person aggrieved by the order may appeal against the order in manner provided by the Summary Jurisdiction Acts to a court of quarter sessions.

Power to prohibit removals of firearms and ammunition.

9.—(1) A Secretary of State may by order prohibit the removal of any firearms or ammunition from one place to another in the United Kingdom or for export, unless such removal is authorised by the chief officer of police of the district from which they are to be removed, and unless such other conditions as may be specified in the order are complied with.

- (2) Any such order may apply—

- (a) either generally to all such removals, or to removals from and to any particular localities specified in the order; and
 (b) either to all firearms and ammunition or to firearms and ammunition of such classes and descriptions as may be so specified; and
 (c) either to all modes of conveyance or to such modes of conveyance as may be so specified :

Provided that no such order shall prohibit the holder of a firearm certificate from carrying with him any firearms or ammunition authorised by the certificate to be so carried.

(3) Any officer of police may search for and seize any firearms or ammunition which he has reason to believe are being removed or to have been removed from one place to another or for export in contravention of any such order as aforesaid, and any person having the control or custody of any firearms or ammunition in course of transit shall, on demand by a police constable, allow him all reasonable facilities for the examination and inspection thereof, and shall produce to him any documents in his possession relating thereto.

(4) If any person is guilty of a contravention of any of the provisions of this section, he shall, on summary conviction, be liable to a fine not exceeding twenty pounds for each firearm or parcel of ammunition in respect of which the offence is committed, or to imprisonment with or without hard labour for a term not exceeding three months, or to both such imprisonment and fine; and if the offender is the owner of the firearms or ammunition, the court before whom he is convicted may make such an order as to the forfeiture of the firearms or ammunition as the court think fit.

10.—(1) Any constable may demand from any person whom he believes to be in possession of, or to be using or carrying, a firearm or ammunition (except in circumstances where possessing, using, or carrying a firearm or ammunition without a firearm certificate does not constitute an offence) the production of his firearm certificate. Production of
firearm
certificates.

(2) If any person upon whom a demand is so made fails to produce the certificate, or to permit the constable to read the certificate, or to show that he is a person who is exempted under section one, subsection (8), of this Act from the necessity of having a certificate, the constable may seize and detain the firearm or ammunition, and may require that person to declare to him immediately his name and address.

(3) If any person refuses so to declare his name and address, or fails to give his true name and address, he shall be liable on summary conviction to a fine not exceeding twenty pounds, and the constable may apprehend without warrant any person who refuses so to declare his name or address, or whom he suspects of giving a false name or address, or of intending to abscond.

11.—(1) Where any person is convicted of an offence under this Act, or is convicted of any crime for which he is sentenced to penal servitude or imprisonment, or where a person has been ordered to be subject to police supervision or to enter into a recognizance to keep the peace or to be of good behaviour, a condition of which is that the offender shall not possess, use, or carry a firearm, the court before whom he is convicted or by whom the order is made may make such order as to the forfeiture or disposal of any firearm, prohibited weapon, or ammunition found in his possession, or used or carried by him, as the court think fit, and may cancel any firearm certificate held by the person convicted. Provisions as
to forfeiture
of firearms,
cancellation of
certificates,
and search
warrants.

Where the court cancel a firearm certificate under this section, they shall cause notice to be sent to the chief officer of police by whom the certificate was granted.

(2) If a justice of the peace is satisfied by information on oath that there is reasonable ground for suspecting that an offence under this Act has been, is being, or is about to be committed, he may grant a search warrant authorising any constable named therein to enter at any time any premises or place named in the warrant, if necessary by force, and to search the premises or place and every person found therein, and to seize and detain any firearm, prohibited weapon, or ammunition which he may find on the premises or place, or on any such person, in respect of which or in connexion with which he has reasonable grounds for suspecting that an offence under this Act has been, is being, or is about to be committed, and, if the premises are those of a registered firearms dealer, to examine any books relating to the business.

(3) The constable making the search may arrest without warrant any person found on the premises whom he has reason to believe to be guilty of an offence against this Act.

(4) A court of summary jurisdiction may, on the application of the chief officer of police, order any firearm, prohibited weapon, or ammunition seized and detained by a police constable under this Act to be destroyed or otherwise disposed of.

Interpreta-
tion.

12.—(1) In this Act, unless the context otherwise requires—

The expression “firearm” means any lethal firearm or other weapon of any description from which any shot, bullet, or other missile can be discharged, or any part thereof, and the expression “ammunition” means ammunition for any such firearms, and includes grenades, bombs, and other similar missiles, whether such missiles are capable of use with a firearm or not, and ingredients and components thereof :

Provided that a smooth bore shot-gun or air-gun or air-rifle (other than air-guns and air-rifles of a type declared by rules made by a Secretary of State under this Act to be specially dangerous) and ammunition therefor shall not in Great Britain be deemed to be a firearm and ammunition for the purpose of the provisions of this Act other than those relating to the removal of firearms and ammunition from one place to another or for export :

The expression “offence under this Act” includes any act, omission, or other thing which is punishable under this Act :

The expression “gun licence” means a licence to use or carry a gun granted under the Gun Licence Act, 1870, and any reference to a gun licence shall include a reference to a licence or certificate to kill game taken out under the law with respect to such a licence or certificate :

The expression “police district” means any district for which there is a separate police force, and the expression “the chief officer of police” has the meaning assigned to it by the Police Act, 1890, and with respect to the City of London means the Commissioner of the City Police.

(2) The provisions of this Act as to selling and purchasing shall apply to letting on hire, giving, lending, transferring and parting with possession, and to hiring, accepting and borrowing, in the same manner as they apply to selling and to purchasing, and the expressions “seller” and “purchaser” shall be construed accordingly.

Savings.

13.—(1) Nothing in this Act relating to firearms shall apply to an antique firearm which is sold, bought, carried, or possessed as a curiosity or ornament.

33 & 34 Vict.
c. 57.

53 & 54 Vict.
c. 45.

(2) The provisions of this Act as to the possession of firearms without a firearm certificate shall not apply to firearms which are possessed as trophies of the present or any former war, if the owner thereof has given notice of the fact in the prescribed form to the chief officer of police of the district in which he resides, and the chief officer has signified that a certificate in respect thereof can be dispensed with, which dispensation shall be granted unless the chief officer is of opinion that the owner is not a person to whom a firearm certificate would be granted :

Provided that such firearms possessed as trophies shall not be used or carried, and that no ammunition therefor may be purchased.

(3) The provisions of this Act relating to ammunition shall be in addition to and not in derogation of any enactment relating to the keeping and sale of explosives.

14. Nothing in this Act contained shall apply to the proof houses of the Master, Wardens, and Society of the Mystery of Gunmakers of the City of London and the guardians of the Birmingham proof house or the rifle range at Small Heath, near Birmingham, where firearms are sighted and tested, so as to interfere in any way with the operations of those two companies in proving firearms under the provisions of the Gun Barrel Proof Act, 1868, or any other Acts for the time being in force, or to any person carrying firearms to or from any such proof house when being taken to such proof house for the purposes of proof or being removed therefrom after proof.

*Saving for the
Mystery of
Gunmakers.*

31 & 32 Vict.
c. cxiii.

15. A Secretary of State may make rules for prescribing the form of firearm certificates, and the book required by this Act to be kept by persons manufacturing or selling firearms or ammunition by way of trade or business, and other documents, and for prescribing any other thing which under this Act is to be prescribed, and for regulating the manner in which chief officers of police are to carry out their duties under this Act, and generally for carrying this Act into effect, and may by those rules vary or add to the Second Schedule to this Act, and references in this Act to that schedule shall be considered as references to the schedule as for the time being so varied or added to.

*Power to
Secretary of
State to make
rules.*

16. The power under the Unlawful Drilling Act, 1819, of authorising meetings and assemblies of persons for the purpose of training and drilling themselves, or of being trained and drilled to the use of arms, or for the purpose of practising military exercises, manœuvres, or evolutions, shall be exerciseable by a Secretary of State, or any officer deputed by him for the purpose, instead of by the lieutenant or two justices of the peace of a county.

*Amendment
of 60 Geo. 3.
and 1 Geo. 4.
c. 1.*

Application
to Scotland.

17. This Act shall apply to Scotland, subject to the following modifications :—

- (1) The Secretary for Scotland shall be substituted for a Secretary of State, except as regards the provisions of this Act relating to the removal of firearms and ammunition from one place to another or for export, and Act of Sederunt shall be substituted for rules made by the Lord Chancellor :
- (2) References to a court of summary jurisdiction shall be construed as references to the sheriff, and an appeal under subsection (4) of section one or subsection (4) of section eight of this Act shall be presented to the sheriff within whose jurisdiction the appellant resides or the place of business in question is situated :
- (3) References to an appeal to quarter sessions shall not apply, and references to a person subject to a recognizance or ordered to enter into a recognizance shall be construed as references to a person ordained to find caution :
- (4) The expression "justice of the peace" includes the sheriff and any magistrate, by whatever name called, officiating under the provisions of any general or local Police Act :
- (5) The reference to the Police Act, 1890, shall be construed as a reference to the Police (Scotland) Act, 1890.

53- & 54 Vict.
c. 67.

Application to
Ireland.

18. This Act shall apply to Ireland, subject to the following modifications :—

- (1) A reference to the Chief Secretary shall be substituted for any reference to a Secretary of State :
- (2) The expressions "police district" and "chief officer of police" respectively mean in the police district of Dublin metropolis that district and any of the commissioners of the police for that district, and elsewhere any district for which a county inspector of the Royal Irish Constabulary is appointed and such county inspector :
- (3) For the purposes of this Act, a court of summary jurisdiction shall, except in the police district of Dublin metropolis, be constituted of a resident magistrate sitting alone or with one or more other resident magistrates, and the decision of a court of summary jurisdiction on a prosecution for an offence under this Act shall be final :
- (4) "One year" shall be substituted for "three years" as the maximum period during which a firearm certificate may continue in force or for which a firearm certificate may be renewed :
- (5) In the provisions as to penalties "two years" shall be substituted for "three months" as the maximum term of imprisonment :

(6) In the provisions restricting the purchase, possession, and use of firearms by persons under fourteen, "sixteen years" shall be substituted for "fourteen years":

(7) A reference to the enactments relative to pawnbrokers in Ireland shall be substituted for the reference to the Pawnbrokers Act, 1872.

35 & 36 Vict.
c. 93.
4 & 5 Geo. 5.
c. 58.

(8) Section eighteen of the Criminal Justice Administration Act, 1914, so far as it limits the aggregate term of imprisonment where two or more sentences of imprisonment passed by a court of summary jurisdiction are ordered to run consecutively, shall not apply in any case where any of the sentences is passed for an offence under this Act:

(9) Provisions as to appeals shall not apply:

(10) The exemption in favour of any person conducting or carrying on a miniature rifle range or shooting gallery or using a miniature rifle or ammunition at any such range or gallery shall not apply:

(11) Any constable authorised in writing in that behalf by the chief officer of police shall have the same powers as if the authority were a search warrant issued by a justice of the peace under this Act:

(12) In addition to any other powers conferred on him under this Act, or otherwise, any constable may arrest without warrant any person whom he believes to be in possession of, or to be using or carrying, a firearm or ammunition in contravention of any of the provisions of this Act, and may search any such person, and whether arresting him or not may seize and detain any firearm or ammunition in his possession or used or carried by him:

(13) For the purposes of the Explosives Substances Act, 1883, any firearm within the meaning of this Act shall be deemed to be an explosive substance.

19.—(1) This Act may be cited as the Firearms Act, 1920.

(2) The Pistols Act, 1903, is hereby repealed.

Short title,
repeal, and
commence-
ment.
3 Edw. 7
c. 18.

(3) This Act shall come into operation on the first day of September, nineteen hundred and twenty:

Provided that a Secretary of State may, as respects any of the provisions of this Act, by order, substitute some subsequent date or dates, not being later than the first day of December, nineteen hundred and twenty, as the date or dates on which those provisions are to come into operation.

SCHEDULES.

Section 1.

FIRST SCHEDULE.

FEES FOR FIREARM CERTIFICATES.

Where the applicant is not the holder of a certificate in force at the time of the application—	<i>s. d.</i>
(a) if the firearm or any of the firearms in respect of which a certificate is applied for belonged to him at the passing of this Act - - -	2 6
(b) in any other case - - - - -	5 0
Where the applicant is the holder of a certificate in force at the time of the application and is applying for the renewal of the certificate - - - - -	2 6

Sections 2
and 15.

SECOND SCHEDULE.

PARTICULARS TO BE ENTERED IN BOOK BY FIREARMS DEALERS.

1. The quantities and description of firearms and ammunition manufactured and the dates thereof.

2. The quantities and description of firearms and ammunition purchased, with the names and addresses of the sellers and the dates of the several transactions.

3. The quantities and description of firearms and ammunition sold, with the names and addresses of the purchasers and (except in cases where the purchaser is a registered dealer) the districts in which the firearm certificates were issued, and the dates of the several transactions.

4. The quantities and description of firearms and ammunition in possession for sale at the date of the last stocktaking or such other date in each year as may be specified in the book.

CHAPTER 44.

An Act to control temporarily the Exportation of
certain Fertilisers. [16th August 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Power to
control tem-
porarily the

1.—(1) Subject to the provisions of this Act, His Majesty may by Order in Council prohibit the export from the United